NATIONAL COMPANY LAW TRIBUNAL
NEW DELHI BENCH (COURT- II)

(CAA)-70/ND/2021

IN THE MATTER OF SCHEME OF AMALGAMATION :

BETWEEN

M/S COMPAREX INDIA PRIVATE LIMITED
... Applicant No.1/Transferor Company

AND

M/S SOFTWAREONE INDIA PRIVATE LIMITED
...Applicant No.2/ Transferee Company

AND

THEIR RESPECTIVE SHAREHOLDERS

Order Delivered on : 01.11.2021

Section: 230 to 232 of the Companies Act, 2013

CORAM

SH. ABNI RANJAN KUMAR SINHA, HON'BLE MEMBER (JUDICIAL)

SH. L. N. GUPTA, HON'BLE MEMBER (TECHNICAL)

PRESENT

For Applicants : Mr. Abhishek Nahta, PCA

ORDER

PER SHRI L.N. GUPTA, MEMBER (T)

This Company Petition jointly filed by the Applicant Companies is coming before us for admission, fixing a date for hearing as well as for a direction for publication of Notice to be effected in the Newspapers and issuance of notices to the concerned authorities for objections, if any, to the Composite Scheme of Amalgamation (hereinafter, referred to as the **"SCHEME"**) contemplated between the Applicants, which will take effect from the Appointed Date of 01.04.2021.

2. As per the averments, the Registered offices of both the Applicant Companies are located in Delhi and hence, falling within the territorial jurisdiction of this Bench.

3. From the case records, it is seen that the First Motion Petition seeking direction for dispensing the meeting of Equity Shareholders, Secured Creditors and Unsecured Creditors was filed before this Tribunal in C.A. (CAA)-124/ND/2020 under Sections 230-232 of the Companies Act, 2013 and vide Order dated 05.04.2021, directions were issued by this Tribunal to dispense with the meetings of the Equity Shareholders, of the Applicant Companies. Further, this Tribunal directed to conduct the meeting of unsecured creditors of the Transferor Company and the Chairman was directed to file its report. That the meeting of the

Unsecured Creditors of the Transferee Company was dispensed with. Since there was no Secured Creditor in any of the Applicant Company, the requirement of convening their meeting did not arise.

4. That the Chairman Shri. Vijay Gupta has filed his report dated 28.05.2021 stating that the Scheme has been approved by the Unsecured Creditors of the Transferor Company.

5. While going through the documents, we observe that the Applicant Companies have filed an Affidavit of Service and Publication dated 13.07.2021 stating, inter alia, that *"Pursuant to the order dated 01.07.2021 of the Hon'ble Tribunal, the notice of the hearing of the aforesaid petition were published in the Newspapers, "Indian Express" English, Delhi Edition), and Jansatta (Hindi, Delhi Edition), on 09.07.2021"*. The scanned copy of the same is reproduced overleaf :

BEFORE THE NATIONAL COMPANY LAW TRIBUNAL

BENCH AT NEW DELHI

COMPANY PETITION NO. CAA-70/(ND)/2021

CONNECTED WITH

COMPANY APPLICATION NO. CA (CAA)-124/(ND)/2020

UNDER COMPANIES ACT, 2013

AND

IN THE MATTER OF AMALGAMATION BY AND BETWEEN

COMPAREX INDIA PRIVATE LIMITED
C-01, Somdutt Chambers 1, Africa Avenue 5,
Bhikaji Cama Place, South West Delhi, Delhi - 110029
CIN: U80221DL2002PTC114903

...TRANSFEROR COMPANY / PETITIONER COMPANY NO. 1

WITH

SOFTWAREONE INDIA PRIVATE LIMITED
4th Floor, Kaveri Tower-1 211, Sector-D,
Pocket-6, Vasant Kunj, South Delhi, New Delhi -110070
CIN: U72900DL2010FTC206379

...TRANSFEREE COMPANY / PETITIONER COMPANY NO. 2

And Their Respective Shareholders

.....Petitioner Companies

AFFIDAVIT OF SERVICE AND PUBLICATION

I, Meetu Bajaj, W/O Shri Sandeep Bajaj, aged about 44 years, resident of House No. 497, Sector 4, Urban Estate, Gurugram - 122001, do hereby solemnly affirm and say as follows:

1. That I am the Federation General Counsel & Company Secretary of **SOFTWAREONE INDIA PRIVATE LIMITED,** Petitioner Company No. 2 in the petition above mentioned and I am fully conversant with the facts and circumstances of the present case and am duly authorized to present this affidavit on behalf of the above mentioned Petitioner Company No.2.

2. Pursuant to the order dated 1st July, 2021 of the Hon'ble Tribunal, complete copies of the company petition have been served to the Regional Director (Northern Region), Registrar of Companies ,Official Liquidator and Income Tax Authorities. Copy of Receipts of acknowledgement of notice served to the Regional Director (Northern Region), Registrar of Companies, Official Liquidator and by email to Income Tax Authorities are annexed hereto as **ANNEXURE A**.

3. Pursuant to the order dated 1st July, 2021 of the Hon'ble Tribunal, the notice of the hearing of the aforesaid petition were published in the Newspapers, "Indian Express" (English, Delhi edition), and "Jansatta" (Hindi, Delhi edition), on 9th July, 2021. The Newspaper cuttings containing the publications of the said notice of hearing of the petition in the Newspapers, "Indian Express" (English, Delhi edition), and "Jansatta" (Hindi, Delhi edition), are annexed hereto as **ANNEXURE B** respectively.

4. That the company has no sectoral regulators or authorities other than the Central Government/Regional Director, Registrar of Companies, the Income Tax Authorities and the Official Liquidator which are likely to be affected by the amalgamation.

5. Further no objections have been received till the date of filing of this affidavit.

For SoftwareONE India Pvt. Ltd.

Authorised Signatory

DEPONENT

Self identified the deponent who has signed in my presence

VERIFICATION

Verified at New Delhi on this 13th day of July, 2021 that the contents of the above affidavits are true and correct and are based on the record of the case and nothing material has been concealed there from.

For SoftwareONE India Pvt. Ltd.

Authorised Signatory

NOTARY

6. However, when we peruse the order dated 01.07.2021, we find that no such direction for Publication of the Notice was issued by this Tribunal. Further, pursuant to filing of the Second Motion petition also, no direction of publications has been issued yet. The scanned copy of the order dated 01.07.2021 is reproduced below :

IN THE NATIONAL COMPANY LAW TRIBUNAL
NEW DELHI BENCH (COURT – II)

Item No. 102
(CAA)-70/ND/2021

IN THE MATTER OF:

Comparex India Private Limited With Softwareone India Pvt. Ltd. ... **Applicant/Petitioner**

Under Section: 230-232

Order delivered on 01.07.2021

CORAM:
SHRI. ABNI RANJAN KUMAR SINHA, HON'BLE MEMBER (J)

SHRI. L. N. GUPTA, HON'BLE MEMBER (T)

PRESENT: Adv. Hemlata Rawat for OL, Adv Rishabh Sachdeva & PCA Mr. Abhishek Nahta-Petitioner Companies, For Income Tax Department- Mr. Sunil Aggarwal, Senior Standing Counsel; Mr. Tushar Gupta, Junior Standing counsel with Ms. Nandini Sahajwani, Advocate.

ORDER

Ld. Counsels for the IT Department, RD and OL have appeared and accepted the notice on their behalf. Two weeks' time is granted to them to file the reply.

List the matter on 2nd August, 2021.

—Sd—
(L.N. GUPTA)
MEMBER (T)

—Sd—
(ABNI RANJAN KUMAR SINHA)
MEMBER (J)

7. Therefore, such a publication made by the Applicant Companies cannot be held valid. In the aforesaid circumstances, we pass the following directions:

(i) **The Petition stands Admitted.**

(ii) **The date of hearing of the Petition** filed by the Petitioner Companies for approval of the Scheme **is fixed for 20.12.2021.**

(iii) **Notice of the hearing shall be published in the newspapers** namely, "Financial Express" in English and "Jansatta" in Hindi (Delhi edition) in not less than 40 days before the aforesaid date fixed for hearing.

8. Since, Ld. Counsels for Income Tax Department, Regional Director and Official Liquidator have already accepted the notices as recorded in the order dated 01.07.2021, therefore, there is no need of issuing any further notice to them.

9. In addition to publication of the above Public Notice, **the Applicant Companies shall individually serve the notices of this Petition to the following Authorities, namely** :

(a) Registrar of Companies, NCT of Delhi & Haryana, Ministry of Corporate Affairs,

(b) Such other Sectoral Regulatory Authorities, which govern working of the Companies involved in the Scheme;

at least 40 days before the date fixed for hearing of this Petition.

10. That the Petitioner Companies shall, at least 7 days before the date of hearing of the Petition, file an Affidavit of Service in relation to the Newspaper publication effected as well as service of Notices on the Authorities as specified above including the Sectoral Regulators, if any.

11. Objections, if any, by the Authorities to whom Notices are given on or before the date of hearing fixed herein may be filed to the "SCHEME" contemplated by the Petitioner Companies, failing which it will be considered by this Tribunal that there is no objection to approval of the "SCHEME" on the part of the Authorities, subject to other conditions as may be applicable under the Companies Act, 2013 and relevant rules framed there under being satisfied.

-Sd-

(L. N. Gupta)
Member (T)

-Sd-

(Abni Ranjan Kumar Sinha)
Member (J)